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May 27, 2026

Via Email

Kristen Clothier
Town of Telluride
135 W. Columbia Ave., Telluride, Colorado 81435
Email: kclothier@telluride.gov

**Re: Carhenge Conceptual PUD Application
(Lots 34 and 34-B, Backman Village Subdivision)
C7CC - Compliance with Backman Village Plat**

Dear Kristen:

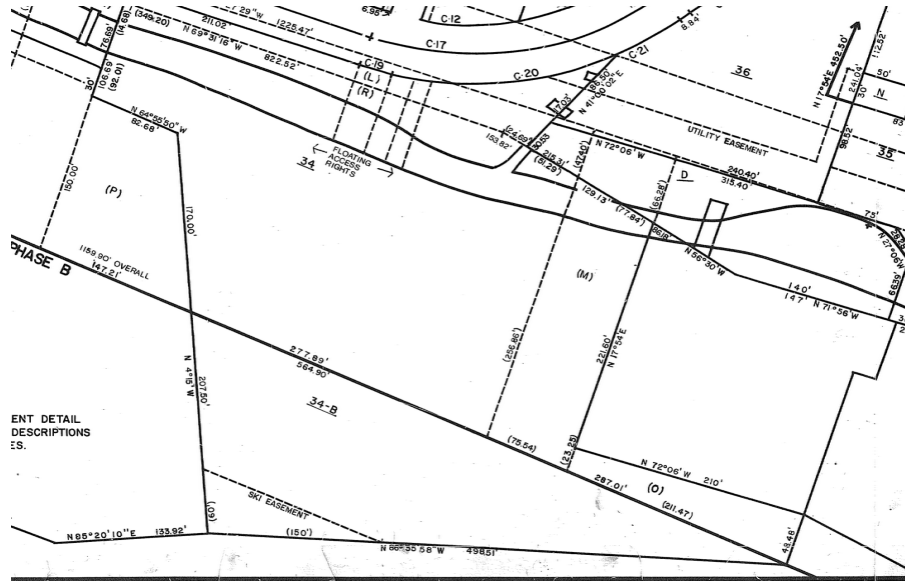
This firm represents Chair 7 Community Coalition, a Colorado nonprofit corporation ("**C7CC**"). This organization has almost 200 members who both own and rent, are residents and second homeowners, and occupy property all throughout the surrounding multi-family residential units, deed restricted units, and blocks of single family homes.

This letter outlines multiple concerns by C7CC regarding the Conceptual PUD Application for Lots 34 and 34-B ("**Carhenge Application**"), and the application's lack of compliance with the uses stated in the Backman Village Plat.¹

¹ The Declaration of Protective Covenants, Conditions and Restrictions for the Backman Village Subdivision was recorded on June 29, 1979, at Book 380, Pages 377–386 of the records of the San Miguel County Clerk and Recorder (Reception No. 212306) ("**Backman Village Plat**").

Town of Telluride / Ms. Kristen Clothier
May 27, 2026

Here is how Lots 34 and 34B are depicted on the Backman Village Plat.



As well, here are the plat notes for Lots 34 and 34-B on the Backman Village Plat.

The Plat note for Lot 34, it reads: "131 LODGING OR MULTIFAMILY UNITS OR 112 LODGING OR MULTIFAMILY UNITS WITH 21,000 SQ. FT. COMMERCIAL, 2.941 ACRES."

LOT 34, 131 LODGING OR MULTIFAMILY UNITS OR 112 LODGING OR MULTIFAMILY UNITS WITH 21,000 SQ. FT. COMMERCIAL, 2.941 ACRES.

The Plat note for Lot 34-B, it reads "45 LODGING OR MULTIFAMILY UNITS OR 29 LODGING OR MULTIFAMILY UNITS WITH 7200 SQ FT COMMERCIAL, 1.177 ACRES."

LAND USES, DENSITIES, AND EASEMENTS FOR LOTS

LOT 34-B, 45 LODGING OR MULTIFAMILY UNITS OR 29 LODGING OR MULTIFAMILY UNITS WITH 7200 SQ FT COMMERCIAL, 1.177 ACRES.

Town of Telluride / Ms. Kristen Clothier
May 27, 2026

1. Consolidation of Lots 34 and 34B Requires a Plat Amendment

The Carhenge Application proposes to ultimately consolidate Lots 34 and 34-B into a single development parcel, although the instant Conceptual PUD Application does not yet make that request.² C7CC has requested information on the status of that separate application.

Combining Lots 34 and 34B requires an amendment of the Backman Village Plat.

2. 220-230 Multifamily Units Require a Plat Amendment

The Carhenge Application seeks to construct 220-230 multifamily units, 10% of which may be free market. These are spread out in Buildings A-F. Buildings A-D appear to be on Lot 34. Buildings E-F appear to be on Lot 34-B.

The Backman Village Plat note for Lot 34 limits multifamily units to 112 units if there is also commercial development, and for Lot 34-B it limits multifamily to 29 units if there is going to be commercial development.

<u>Lot</u>	<u>Multifamily units (if there is also commercial sq. ft.)</u>
Lot 34	112
<u>Lot 34-B</u>	<u>29</u>
Total	141

That means the aggregate number of multifamily units allowed on these two lots is 141 units. Yet the applicant proposes 220-230. Changing the number of multifamily units allowed under the Backman Village plat from 112 units to 230 requires an amendment to the Plat.

² In the Application, the page 3 vicinity-map legend labels the site a "Subdivision Application to Combine Lots," and the narrative confirms the goal of merging Lots 34 and 34B into one parcel. But the combination is expressly carved out of this Conceptual PUD. Under "Current Zoning," the application states the combining of the lots into a single parcel "will be the subject of a future Preliminary Subdivision application," and separately notes "the PUD would be one single filing." So the consolidation is pushed to a later, standalone application — it is not being sought or approved through this PUD.

Town of Telluride / Ms. Kristen Clothier
May 27, 2026

An amendment to the Backman Village Plat requires *all* current owners in Backman Village to sign as successors of The Telluride Company, plus The Telluride Company. This will not be possible because the members of C7CC, many of whom are also owners of property in Backman Village, will not agree to such an amendment.

Since the proposed development in the Carhenge Application would require two Backman Village plat amendments, each of which in turn requires unanimous consent, and since that unanimous consent will not be forthcoming, the Carhenge development application is *literally futile*.

How does the Town as applicant and the Town as the reviewing body intending to address this futility?

Thank you and we look forward to your response as the reviewing body, and the response of the Town of Telluride as applicant.

Respectfully submitted,

/s/ Diane Wolfson

Diane Wolfson, Esq.

Counsel for Chair 7 Community Coalition, a Colorado nonprofit corporation